

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

July 16, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10:00 a.m.		
1	Patriot Bank vs. Alvarado	The Motion to be Relieved as Counsel brought on behalf of Andrew Gramajo is DENIED , without prejudice.

		On 6/4/26, the Court denied defense counsel's prior motion due to multiple defects for failing to comply with Rules of Court, Rule 1362. (ROA 44.) This instant motion was filed on 6/8/26. Many of the same defects remain, necessitating denial of the instant motion. This motion still fails to comply with the requirements of Rules of Court, Rule 3.1362. The notice of motion fails to identify the correct address for the Court. As previously stated in the Court's Minute Order dated 6/8/26, the address listed within the caption is the address for the Civil Complex Center, despite Department C10 being located in the Central Justice Center, located at 700 Civic Center Drive West, Santa Ana, CA 92701. Based on the above, the client did not receive adequate notice of the hearing. Further, the mandatory declaration still left the entirety of ¶3, subd. (b) blank. (ROA 46.) Consequently, there is no indication the client's address was confirmed. (See ¶3(b)(1) of ROA 46.) Similarly, Counsel offered no information which supports proceeding, despite a lack of confirmation. (See ¶3(b)(2) and (c) of ROA 46.) The above fails to comply with Rules of Court, Rule 3.1362(d)(1). Lastly, on 6/4/26, Moving Attorney was ordered to give notice of the hearing (ROA 44) and the record does not reflect any notice was provided. The moving party to give notice.
2	Huynh vs. Tran	OFF Calendar
1:30 p.m.		
1	Abersman vs. Robert Loftus Construction Inc	OFF Calendar
2	Abdelmalek vs. State Farm General Insurance Company	Defendants State Farm General Ins. Co.'s motion for summary judgment of the first through third causes of action of the complaint by Plaintiffs Fady Abdelmalek and St. Moses the Black, LLC is GRANTED. A. Legal Standard Under Code of Civil Procedure § 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A plaintiff moving for summary judgment satisfies

his or her initial burden by showing that each element of the cause of action in question has been “proved,” and hence that there is no defense thereto. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

“Once the plaintiff ... has met that burden, the burden shifts to the defendant ... to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant ... may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(1).)

In determining whether the parties have met their respective burdens, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom [citation], and must view such evidence [citations] and such inferences [citations], in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Id.* at p. 850, fn. omitted.) Thus, a party “ ‘cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact. [Citation.]’ [Citation.]” (*Dollinger DeAnza Associates v. Chicago Title Ins. Co.* (2011) 199 Cal.App.4th 1132, 1144-1145.)

B. Relevant Causes of Action

Of the five causes of action alleged in the complaint, Plaintiffs allege the following causes of action against the moving Defendant: (1) Breach of Contract, (2) Breach of Implied Covenant of Good Faith and Fair Dealing, and (3) Violation of Bus & Prof. Code §17200).

Defendant State Farm moves for summary judgment and/or summary adjudication on all three causes of action.

C. Relevant Facts

The relevant facts, many of which are undisputed, are as follows:

- Plaintiff St. Moses the Black, LLC (“St. Moses”) is a limited liability company owned by plaintiff Fady Abdelmalek. (Defendant’s Moving Separate Statement of Material Facts, (“SUMF”) #1; Plaintiff’s response to SUMF #1).
- St. Moses owns and operates a number of shops, including those located at 104, 303, and 307 Main Street, Newport Beach, and at 29 Pier Avenue, Hermosa Beach. (SUMF #2, Plaintiff’s response to SUMF #2).
- St. Moses also used to operate a shop at 305 Main Street, Newport Beach, which was later relocated to 303 Main Street. (SUMF #3, Plaintiff’s response to SUMF #3). While this fact is undisputed, Plaintiffs add context in that in December 2022 Mr. Abdelmalek asked Agent Chhiv's office to remove 305 Main and add 104, 303, and 307 Main Street. (SUMF #14 and Plaintiff’s Additional Material Facts (“AMF”) #12).
- In September 2019, Mr. Abdelmalek applied to State Farm for an insurance policy covering the 305 Main St. retail location. (SUMF #5, Plaintiff’s response to SUMF

#5). Although this fact is undisputed, Plaintiffs add that this was a new business application, that St. Moses had been formed on November 6, 2018 (before this application), and that the application form contained corporation, partnership, and LLC boxes, none of which was selected. (AMF 5-9.)

- According to his “Business Insurance Application” form, Mr. Abdelmalek sought a retail sales policy for an individual named “Abdelmalek, Fady dba Waves,” for one location at 305 Main St. (SUMF #6, Plaintiff’s response to SUMF #6). Although this fact is undisputed, Plaintiffs add that Mr. Abdelmalek did not complete the application himself but relied on the agency to prepare it, and that State Farm never asked whether he operated through an LLC. (AMF 4, 9-11.)
- State Farm never asked Mr. Abdelmalek whether he operated through an LLC and never requested any St. Moses documentation between 2018 and 2023. (AMF 11).
- State Farm issued Retail Sales Policy No. 92-GR-Q443-2 to named insured “Fady Abdelmalek dba Waves” for property at “305 MAIN ST NEWPORT BEACH CA 92661-1327.” (SUMF #7, Plaintiff’s response to SUMF #7).
- The Policy took effect September 25, 2019, and was renewed annually without interruption, including for the September 25, 2023 – September 25, 2024 period, each to the same named insured for the same listed location. (SUMF #8, Plaintiff’s response to SUMF #8).
- Mr. Abdelmalek (dba Waves) was the only named insured on the Policy. St. Moses was not listed as a named or additional insured. (SUMF #9, Plaintiff’s response to SUMF #9). While this fact is undisputed, Plaintiffs add that the omission of the entity resulted from the insurance agency's failure to capture it in the 2019 new business application and should be imputed to State Farm under Civ. Code § 2332. (AMF 5-11.)
- Neither State Farm nor Agent Chhiv have a record of any request before December 2022 to list a location other than 305 Main St. as a “Described Premises.” (SUMF #11, Plaintiff’s response to SUMF #11). While this fact is undisputed, Plaintiffs add that Plaintiff made a request for a location change to add 104, 303, and 307 Main to the policy in December 2022 (SUMF 14), before the November 8, 2023 fire. (AMF 12-13.)
- In December 2022, Mr. Abdelmalek called Agent Chhiv's office and asked for the removal of 305 Main St. and the addition of 104, 303, and 307 Main St. (SUMF 14; Plaintiff’s response to SUMF 14). The pivotal issue on this motion is Plaintiff’s contention that the agent’s knowledge is imputed on State Farm.
- In response, Agent Chhiv emailed Mr. Abdelmalek on January 18, 2023, requesting clarification as to the new locations. SUMF 15; Plaintiff’s response to SUMF 15). Plaintiff contends that this January 18, 2023 email confirms that the agent received Plaintiff’s location request and was processing it. (AMF 12-13.)
- Mr. Abdelmalek did not respond to Agent Chhiv's January 18th email or otherwise provide the requested information. (SUMF 16; Plaintiff’s response to SUMF 16). While this fact is not disputed, Plaintiffs add that Mr. Abdelmalek testified that he did not see or

receive that email when it was sent and first saw it only after the November 2023 fire. (Abdelmalek Decl. ¶ 8; Kitsinian Decl., Ex. D (Fady Depo, pp. 91:9-10, 91:16, 91:19, 92:5, 92:11).) Plaintiffs, therefore, dispute whether the insured received the clarification request and disputes that his failure to reply reflects that he did not receive the email rather than any refusal to cooperate. Plaintiffs also argue that independently, the insurance agency already possessed the information needed to process the change: the December 2022 request identified the four locations, and the agency's internal December 16, 2022 email (Ex. F) listed 305 Main out and 104, 303, and 307 Main in. As such, Plaintiffs argue that the insured's reply was unnecessary, and his failure to reply does not negate the agent's imputed knowledge of the request (Civ. Code § 2332) or the agency's failure to transmit it to underwriting. (AMF 12-14, 37-39.)

- On or about November 8, 2023, a fire occurred at 104 Main St., causing significant damage to the building and its contents. (SUMF 19; Plaintiff's response to SUMF 19).
- Mr. Abdelmalek submitted a claim to State Farm under the Policy for the resulting fire related personal property loss and business interruption coverage. (SUMF 20; Plaintiff's response to SUMF 20).
- State Farm's underwriting department was not notified until December 2023 that the insured was no longer at 305 Main, was operating from additional locations, or sought a location change. (SUMF 17; Plaintiff's response to SUMF 17). Plaintiffs contend that the insurance agency, which received the December 2022 request (UMF 14), failed to transmit it to underwriting for approximately one year.
- State Farm denied Mr. Abdelmalek's location change request on December 14, 2023, because it was no longer accepting new business or accommodations for existing customers who moved or changed locations. (SUMF 18; Plaintiff's response to SUMF 18).
- After reviewing the Policy and information from Agent Chhiv, State Farm determined the Claim was not covered because the Covered Property at the premises described in the Declarations was not involved in the fire loss. (SUMF 23; Plaintiff's response to SUMF 23).
- State Farm's casualty examiner noted on November 30, 2023 that under third party coverage there was "no location limitation" and coverage "would extend"; this analysis was never disclosed to the insured. (AMF 17).
- State Farm's underwriting provided coverage after the loss, which the claim handler knew of before denying the claim but did not inquire into. (AMF 18)
- A denial letter explaining State Farm's decision and quoting applicable Policy language was sent to Mr. Abdelmalek on or about February 16, 2024. (SUMF 24; Plaintiff's response to SUMF 24).
- Plaintiff contends that State Farm's denial rested solely on the described premises rationale and did not address the December 2022 request, the agency's failure to process it, or the favorable third party coverage analysis. (AMF 19).

- Plaintiff offers expert testimony that the Chhiv agency's handling of the request to add 104, 303, and 307 Main Street and remove 305 Main Street fell below the standard of care of a reasonably care for California property and casualty insurance agent.

D. Issues 1-3: Standing

i. St. Moses

Defendant State Farm moves for summary adjudication of the first cause of action for breach of contract (Issue 1), second cause of action for Breach of implied Covenant of Good Faith and Faith Dealing (Issue 2), and third cause of action for violation of Unfair Competition by Plaintiff St. Moses The Black, LLC (“St. Moses”) on the ground that St. Moses lacks standing because St. Moses is not a named insured.

A party who is not a signatory or a named additional insured on a policy cannot enforce contractual benefits from an insurance policy. (*Wexler v. California FAIR Plan Ass’n* (2021) 63 Cal.App.5th 55, 62-63). For example, in *Wexler*, *Wexler’s* parents were named as the insureds on a home policy. (*Id.* at 63). *Wexler*, the daughter, was not a signatory to the policy and was not named as an additional insured. (*Id.*) The court held that the insurer is “on the hook for covered damaged to *Wexler’s* property in her parents’ house...” but that the insurer was “on the hook to her parents,” and not *Wexler*. (*Id.*) As a non-signatory and as a person who was not named as an additional insured, the court held that *Wexler* lacked standing to enforce the rights under the insurance policy. (*Id.*) Any benefits due were due to *Wexler’s* parents and not *Wexler*. (*Id.*; see also *Seretti v. Superior Nat. Ins. Co.*, 71 Cal. App. 4th 920, 931 (shareholders in closely held corporation lacked standing to pursue bad faith action because they were not parties to the insurance contract and privity of contract is essential.)

Here, it is undisputed that under the two policies at issue (the 2018 policy and the 2019 policy), the named insured was Abdelmalek, Fady, dba Waves. (SUMF ## 6 & 9; Response to SUMF # 6 & 9). St. Moses was not listed as a named or additional insured. (*Id.*) Defendant State Farm, therefore, has met its initial burden on a motion for summary judgment of establishing that St. Moses, as a non-signatory and as a party that is not named as an insured or additional insured, lacks standing to enforce the insurance policy. (*Wexler, supra*, at p. 63).

The burden, therefore, shifts to Plaintiff to create a triable issue of fact. Plaintiff argues that the insured is the agent’s error, which is imputed to State Farm and that St. Moses is a real party in interest. Plaintiff argues that the 2019 policy was a new business requiring a fresh application and by September 2019, St. Moses had existed for ten months. (Plaintiff’s Additional Material Facts, (“AMF”) #5). However, the insurance agency filled out the application for Plaintiff, listed “individual,” left the entity boxes blank, and never asked Plaintiff whether he operated through an LLC or requested any information about St. Moses. (AMF #9, 11).

Plaintiff argues that these facts are sufficient to create a triable issue of fact. The only legal authority Plaintiff cites to support this argument is Civil Code §§ 2230 and 2332.

Section 2330 states: “An agent represents his principal for all purposes within the scope of his actual or ostensible authority, and all the rights and liabilities which would accrue to the agent from transactions within such limit, if they had been entered into on his own account, accrue to the principal.”

Section 2332 states: “As against a principal, both principal and agent are deemed to have notice of whatever either has notice of, and ought, in good faith and the exercise of ordinary care and diligence, to communicate to the other.”

Even if it is undisputed that the insurance agent’s knowledge is imputed on the insurer, Plaintiff’s facts do not establish that the agent had knowledge that Plaintiff ran his businesses through various LLCs, rather than in Plaintiff’s individual capacity. Plaintiff offers no evidence that Plaintiff made any representations to the agent that Plaintiff had any ownership interest in the LLC and/or that St. Moses even existed. It is undisputed that after the application was submitted, the insurance policy named Abdelmalek, Fady, dba Waves as the insured and did not list St. Moses. Plaintiff offers no evidence that Plaintiff contacted the agent to try to correct that an LLC owned the businesses and not Plaintiff.

Sections 2330 and 2332 stand for the proposition that an agent’s knowledge may be imputed onto the principal. Here, Plaintiff fails to establish sufficient facts to establish that the agent had any knowledge of the LLC to impute onto State Farm.

Plaintiff also cites to *Davis v. Phoenix Ins. Co.* (1896) 111 Cal. 409, which does not support Plaintiff’s argument. In *Davis*, a fire insurance policy was based on the condition that the insured was the owner in fee simple of the property to be insured. (Id. at 413). At the time of the insurance policy, while the insured was in full possession of the property, the insured did not have a fee simple interest in the property. (Id. at 414). It was undisputed, however, that in the insurance application, it was clearly stated that the insured was not the owner in fee simple. (Id. at 413). The insurance company nevertheless issued the policy. (Id.) As such, the court held that, by having knowledge that the insured was not the fee simple owner, but by having accepted and issued the policy anyway, the insurer, and not the insured, would be imputed with that mistake. (Id.)

The difference in *Davis* and this case, again, is that the insured in *Davis* clearly stated on the application that the insured was not a fee simple owner. Here, however, there is no showing that Plaintiff provided the insurance agent with any information regarding the ownership structure of Plaintiff’s businesses. *Davis*, is, therefore, inapplicable.

Here, the undisputed facts remain that St. Moses was not a signatory and not named as an insured or additional insured. There is no evidence that any information about the existence of St. Moses was given to the insurance agent or the insurer to impute any knowledge or mistake onto the agent/insurer. (See Ins. Code, § 332 (“[e]ach party to a contract of insurance shall communicate to the other, in good faith, all facts within his knowledge which are or which he believes to be material to the contract and as to which he makes no warranty, and which the other has not the means of ascertaining.”)).

As such, the court will grant summary adjudication as to St. Moses’ first, second, and third causes of action against Defendant State Farm General Insurance Company.

ii. Abdelmalek

In Plaintiff’s opposition, Plaintiff argues that Abdelmalek has an insurable interest in the property and, therefore, has standing to pursue the first through third causes of action. While Defendant contests this argument in the reply, the moving papers do not contest Abdelmalek’s standing. (See Mvg. Memo, 14:10-11 (“For the purposes of this motion, State Farm does not dispute that Mr. Abdelmalek is a Policy insured.”))

As this issue was not part of Defendant's notice or moving papers, the court will not consider the issue of Abdelmalek's standing in this ruling.

E. Issues 4-5: First Cause of Action for Breach of Contract and Second Cause of Action for Breach of the Implied Covenant of Good Faith by Abdelmalek

Defendant State Farm moves for summary adjudication on the first and second causes of action on the grounds that there was no coverage for the fire loss.

To state a cause of action for breach of contract (Plaintiff's first cause of action), a plaintiff must plead as follows: (1) the existence of the contract, (2) plaintiffs' performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821).

In bad faith insurance cases (Plaintiff's second cause of action), a breach of the covenant of good faith and fair dealing permits a tort recovery. (*Cates Construction, Inc. v. Talbot Partners* (1999) 21 Cal.4th 28, 43).

To establish a "bad faith" claim in first party cases, it must be shown that the insurer's delay or withholding of benefits was unreasonable, i.e., without any reasonable basis for the insurer's position or without proper cause. (*Jordan v. Allstate Ins. Co.* (2007) 148 Cal. App. 4th 1062, 1072–73).

"[A]n insured cannot maintain a claim for tortious breach of the implied covenant of good faith and fair dealing absent a covered loss. If the insurer's investigation—adequate or not—results in a correct conclusion of no coverage, no tort liability arises for breach of the implied covenant." (*Benavides v. State Farm General Ins. Co.* (2006) 136 Cal.App.4th 1241, 1250).

Thus, there are at least two separate requirements to establish breach of the implied covenant: (1) benefits due under the policy must have been withheld; and (2) the reason for withholding benefits must have been unreasonable or without proper cause. (*Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151–1152). "[A] bad faith claim cannot be maintained unless policy benefits are due." (*Id.*)

Under both of these causes of action, therefore, without coverage, there would be no breach.

Here, State Farm offers the following facts to support its motion:

- Under the policy's terms, business personal property and loss of income coverages are only owed if there is an "accidental direct physical loss" to covered property at the premises described in the Declarations." (Sharp Dec, ¶3; Exh. 1, Bates pp. 16, 39; SUMF, Fact Nos. 12-13.)
- The Policy's Declarations lists only one "Described Premises": 305 Main St., Newport Beach, California. (SUMF, Fact No. 6, 8.)
- The November 2023 fire occurred at 104 Main St., not 305 Main St. (SUMF 19).

Because the policy only covered losses at 305 Main St., and because the fire occurred at 104 Main St., State Farm argues that the fire loss was not covered under Plaintiff's policy.

The court finds that this evidence, if undisputed without more, is sufficient to meet State Farm's initial burden of establishing that no coverage was due for the loss at 104 Main St.

The burden, therefore, shifts to Plaintiff to offer sufficient facts or a sufficient legal basis to create a triable issue of fact.

Plaintiff's opposition first argues that a triable issue of fact exists, because Plaintiff made a location change request on the insurance policy in December 2022 to insurance agent Chhiv—before the November 2023 fire. Plaintiff argues that Chhiv's knowledge is imputed onto State Farm and that State Farm is, therefore, estopped from denying coverage based on location. Plaintiff's facts are as follows:

- In December 2022, Mr. Abdelmalek called Agent Chhiv's office and asked to remove 305 Main Street from the policy and add 104, 303, and 307 Main Street. (AMF #12).
- The agency's internal records reflect the December 2022 request; a December 16, 2022 email from Ryan Kennedy to Agent Chhiv listed 305 Main out and 104, 303, and 307 Main in. (AMF # 13).
- It is undisputed that in response to Plaintiff's December 2022 call for a location change, Agent Chhiv emailed Mr. Abdelmalek on January 18, 2023, requesting clarification as to the new locations. (SUMF 15). It is also undisputed that Plaintiff never replied back to Agent Chhiv's January 18, 2023 email or provided Agent Chhiv with the information requested. (Id.)
- After the fire, insurance agent Chhiv told Mr. Abdelmalek that the agency had submitted the location change in January 2023, but that it failed to go through due to a technical reason. (AMF #14, Kitsinian Decl., Ex. B).
- Agent Chhiv then changed his statement and admitted that his statement was false, that the location change was not submitted. (Id.)
- "State Farm's underwriting department was not notified of the requested location change until after the November 8, 2023 fire. (AMF #14).
- Nothing was submitted to State Farm to change the insured location before the November 8, 2023 fire; Agent Chhiv admitted that as of November 13, 2023 nothing had been submitted, only requested. (AMF # 33).
- After the fire, the insurance agency submitted the change of location form to State Farm underwriting, and Agent Chhiv admitted that he chose to enter a backdated requested effective date of January 18, 2023. (AMF #34).
- State Farm denied Mr. Abdelmalek's location change request on December 14, 2023, because it was no longer accepting new business or accommodations for existing customers who moved or changed locations. (SUMF #15).

The court cannot find, from these facts, that Plaintiff offered sufficient evidence to create a triable issue of fact. At best, a request for a location change was made and could be imputed onto the insurer. However, Plaintiff fails to show any affirmative representation by Agent Chhiv that the

location change was accepted, that the policy covered the new location, and/or that Plaintiff was somehow made to believe that, based on any conduct by Agent Chhiv, as of December 2022, Plaintiff believed that the new location change was effectuated and that the policy renewal included the new location. At best, Plaintiff establish a request. It would be speculative to assume that had the request been submitted, it would have been accepted in December 2022 and/or that Plaintiff's premium would no have changed.

The authorities that Plaintiff cites to do not support Plaintiff's position.

Sections 2330 and 2332 stand for the proposition that an agent's knowledge and actions may be imputed onto the principal. Here, the most that can be imputed onto the insurer is a request for a location change. There is no evidence of acceptance or representations by the insurance agent that the policy covered a location different than the one listed on the policy.

In *Beach v. U.S. Fidelity & Guaranty Co.*, the court held, an insured, "while negotiating for coverage with the insurer's agent, properly brought all of the material facts relative to the transaction to his attention and specifically requested insurance coverage based thereon, ***was assured by the agent that such coverage could be, would be, and had been effected***, and relied upon the agent's representation with the latter's knowledge, but through the agent's failure and neglect actually was not covered—that the insurer, chargeable with the knowledge and acts of its agent, may be estopped thereafter to rely upon the existence of those facts to deny or defeat coverage." (*Beach v. U.S. Fidelity & Guaranty Co.* (1962) 205 Cal.App.2d 409, 416). Here, there are no facts to establish that the agent "assured" Plaintiff that coverage would be and had been effected at the new location. There is also insufficient evidence that Plaintiff relied on any affirmative assurances by the insurance agent. Beach is, therefore, inapposite.

Plaintiff cites to no case that holds an insured's request alone, without any assurances from an agent that coverage was effectuated, especially when the agent sent a follow up email asking for further information to which Plaintiff did not provide or respond to, somehow imputes acceptance of different insurance coverage onto the insurer.

Second, to attempt to create a triable issue of fact, Plaintiff points to the following fact:

- State Farm's casualty examiner noted on November 30, 2023 that under third party coverage there was "no location limitation" and coverage "would extend"; this analysis was never disclosed to the insured. (AMF #17).

While that fact may give rise to a question of fact as to whether or not third party coverage applies, there is nothing in the record, and Plaintiff offers no evidence, to suggest that an unresolved third-party liability claim is outstanding between the parties.

Indeed, it is undisputed that "Mr. Abdelmalek submitted a claim to State Farm under the Policy for the resulting fire related personal property loss and business interruption coverage." (SUMF #20 and Plaintiff's Response to SUMF #20). In Abdelmalek's declaration for the motion, he testifies: "The November 2023 fire caused the loss of the company's business personal property and business income at 104 Main Street." (Opposition Abdelmalek Declaration, ¶ 4). It is undisputed, by the record on this motion, therefore, that Plaintiff is seeking coverage for first-party losses—not third-party liability. There is no evidence that a third party is making a claim against Plaintiff based on the fire.

The insurer's casualty reviewer's note, therefore, at most, suggests that there is a basis for third-party liability coverage that may have required further investigation. However, because no outstanding third-party liability claim is pending here, it is irrelevant to whether or not first party coverage exists.

Finally, Plaintiff argues that State Farm's administration of the policy is unreliable. Plaintiff points to the fact that although State Farm told Abdelmalek that it cancelled coverage at 305 Main Street effective December 15, 2023, underwriting in fact never cancelled that location: the Policy has continued and is still active, in force for 305 Main Street in Mr. Abdelmalek's name, as of the date of his May 26, 2026 deposition. (AMF 30.) Plaintiff also noted a few other inconsistencies in the way that State Farm discovers facts and/or administers claims. That oversight, however has no bearing on whether or not the property that suffered the fire loss is covered. As such, the court does not find that this fact creates a triable issue of fact.

For these reasons, the court finds that based on the record before it, no triable issues of fact exist regarding coverage.

As such, Plaintiff's first cause of action for breach of contract fails because there was no breach.

Further, Plaintiff's second cause of action for breach of the implied covenant of good faith and fair dealing fails. "[A] bad faith claim cannot be maintained unless policy benefits are due." (*Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151–1152). There are no benefits due.

Summary adjudication is, therefore, granted as to the first and second cause of action.

F. Issue 5: Third Cause of Action for Unfair Business Practices

Plaintiff contends that Plaintiff's third cause of action for unfair business practices is predicated "on State Farm's common law breach of the implied covenant, which *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287, 304-305 does not bar and which is fully cognizable under the Unfair Competition Law. (*Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384.)" (Opposition Memo., at p 18:2-8). "As the Supreme Court held, an insurer's bad faith practices, including the unreasonable withholding of benefits, are sufficient to support a claim of unlawful business practices, even where the same conduct also violates section 790.03(h)." (Id.)

Here, as the court found, there is no triable issue of fact regarding Plaintiff's bad faith claim. Because Plaintiff's bad faith claim fails and because Plaintiff admittedly bases his unfair competition law claim on the bad faith claim, the third cause of action also fails.

As such, summary adjudication is also granted as to the third cause of action.

With the court's ruling, all causes of action by Plaintiffs against Defendant State Farm have been adjudicated.

As such, Defendant State Farm is entitled to summary judgment in its favor on the complaint.

The court, therefore, need not decide the issue of punitive damages.

		The court declines to rule on the party’s objections as immaterial to the court’s disposition. (Code Civ. Proc., § 437c(q)). The court has considered and admitted all evidence that the court has identified above in this ruling. Moving Defendant to give notice.
3	Conn vs. Balboa Bay Club Ventures, LLC	<u>Motion for Summary Judgment.</u> Defendants Balboa Bay Club Ventures, LLC and International Bay Clubs, LLC move for summary judgment on the First Amended Complaint (FAC) filed by Plaintiff Robert L. Conn. For the following reasons, the motion is DENIED. Defendants served the motion on Plaintiff by email on April 22, 2026 and served the separate statement on April 23, 2026. (ROAs 55, 61.) Although Plaintiff evidently had difficulty opening the electronic copies of the motion by email, the more important issue is whether service by email was proper. Plaintiff in this matter is representing himself. California Rules of Court, Rule 2.251(c)(3)(B) provides that self-represented parties “are to be served by non-electronic methods unless they affirmatively consent to electronic service.” Code of Civil Procedure section 1010.6 provides for electronic service of documents in cases filed on or after January 1, 2019, but section 1010.6 subdivision (d)(4) states that local rules requiring electronic filing and service must make unrepresented persons exempt from mandatory electronic filing and service. Local Rule 352 encourages but does not require self-represented parties to participate in electronic filing and service. Thus, service by email alone on Plaintiff is insufficient. Defendants contend that “the remedy for a notice shortfall in summary-judgment practice is a continuance affording the full statutory notice period.” (ROA 63 at 2:21-22.) This is incorrect. (<i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1268 [If the moving party does not provide sufficient notice, the notice period must begin anew. The court cannot cure this defect by continuing the hearing for the missing number of days.]) Defendants have not provided proof that Plaintiff has affirmatively consented to electronic service. Defendants have thus not provided proof of adequate notice of the motion. Even if the Court were to overlook the service issue, the Court finds that Defendants did not meet their initial burden. A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc. (“CCP”), § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 <i>Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].)

Although Defendants styles their motion as a motion for summary judgment or, in the alternative, summary adjudication, because Defendants’ motion papers do not comply with California Rule of Court 3.1350(b), the court must treat the motion solely as a motion for summary judgment. Rule 3.1350(b) states:

If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.

Defendants’ moving papers do not comply with this rule. The motion for summary judgment identifies three issues on which Defendants evidently seek summary adjudication. Their separate statement, however, does not repeat verbatim any of those issues identified in the motion. (*See Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-44 (“A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. The movant must ‘state[] specifically in the notice of motion and ... repeat[], verbatim, in the separate statement of undisputed material facts,’ ‘the specific cause of action, affirmative defense, claims for damages, or issues of duty’ as to which summary adjudication is sought. (Former Cal. Rules of Court, rule 342(b); see now Cal. Rules of Court, rule 3.1350(b).) The motion must be denied if the movant fails to establish an entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers.”).)

Thus, to prevail on their motion, Defendants must demonstrate that they are entitled to summary judgment on all of the causes of action asserted against them.

Defendants have not done so. Indeed, Defendants do not even address the elements of any of the causes of action asserted in the FAC. Defendants do not address the elements of Plaintiff’s first cause of action for breach of written contract, the second cause of action for conversion, or the third cause of action for financial elder abuse. Thus, Defendants did not meet their initial burden of showing that Plaintiff cannot establish at least one element of each of his causes of action.

Defendants shall give notice of this ruling.

4 InsZone Insurance Services, LLC vs. Capizzi	Plaintiff InsZone Insurance Services, LLC, moves to compel further responses from Defendant Vincent A. Capizzi II to Form Interrogatories (Set One). For the following reasons, the motion is DENIED as moot. Plaintiff InsZone Insurance Services, LLC, moves to compel further responses from Defendant Vincent A. Capizzi II to RFPs (Set One). For the following reasons, the motion is DENIED as moot. Plaintiff InsZone Insurance Services, LLC, moves to compel further responses from Defendant Daybreak Services, Inc., dba Daybreak Insurance Services to Form Interrogatories (Set One). For the following reasons, the motion is DENIED as moot.
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		Plaintiff InsZone Insurance Services, LLC, moves to compel further responses from Defendant Daybreak Services, Inc., dba Daybreak Insurance Services to RFPs (Set One). For the following reasons, the motion is DENIED as moot. While these motions were pending, Defendants served second amended responses to the discovery at issue, including Defendant Capizzi II's second amended response to Form Interrogatories (Set One); Defendant Capizzi II's second amended response to RFPs(Set One); Defendant Daybreak's second amended response to Form Interrogatories (Set One); and Defendant Daybreak's second amended response to RFPs(Set One). (Le Decl. ¶ 2, Exs. A-D.) Defendants also produced approximately 1,900 documents responsive to those requests. (Le Decl. ¶ 3.) To the extent Plaintiff argues that Defendants should be ordered to comply with their statutory duty under section 2031.280(a) to identify which documents are responsive to which requests, Plaintiff submits no evidence to support that Defendants failed to comply with their statutory obligation. Arguments raised in briefs constitute the unsworn statements or testimony of counsel, which do not constitute evidence within the meaning of the Evidence Code. (<i>In re Zeth S.</i> (2003) 31 Cal.4th 396, 413, fn. 11; <i>see also In re Marriage of Pasco</i> (2019) 42 Cal.App.5th 585, 592; <i>DiCola v. White Brothers Performance Products, Inc.</i> (2008) 158 Cal.App.4th 666, 683.) <u>Sanctions</u> Plaintiff's request for sanctions is granted against Defendants Vincent A. Capizzi and Daybreak Services, Inc., dba Daybreak Insurance Services, jointly and severally. (<i>See</i> Code Civ. Proc., §§ 2030.300(d), 2031.310(c), Cal. Rules Ct., Rule 3.1348(a).) Defendants are ordered to pay sanctions in the amount of \$5,850.00, within 30 days of the service of the notice of ruling. Plaintiff to give notice.
5	Lauren ce vs. Mal cias	OFF CALENDAR
6	Blood vs. Huntin gton Beach Hospita l	Defendant Prime Healthcare Huntington Beach, LLC dba Huntington Beach Hospital's Motion to Compel Further Responses to Form Interrogatories (Set One) No. 17.1 is CONTINUED to AUGUST 20, 2026, at 01:30pm in Department C10. Defendant served Plaintiff Heather Jeane Blood, who is self-represented, with the moving papers on the motion by electronic service on May 8, 2026. California Rule of Court 2.251(c)(3)(B) provides that self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." There is no evidence in the record that Plaintiff, who is self represented, affirmatively consented to electronic service. To ensure that Plaintiff receives proper notice and due process, therefore, the hearing on the motion is continued to August 20, 2026 at 01:30pm in Department C10 (at least 16 court days plus 5 additional days for mailing). Defendant is ordered to serve Plaintiff with the moving papers by mail in a manner that provides Plaintiff with sufficient notice under the code based on the continued hearing date.
7	9 What ney, LLC vs. Ma yrock A	Continued from the June 11, 2026 hearing, the motion for attorney fees is GRANTED . Moving party shall give notice.

	utomotive, Inc.	
8	Kent vs. Hoag Memorial Hospital Presbyterian	OFF CALENDAR